

Background Annex — Financial Position, MPS Purpose, and Detach Lending Nexus

*Contemporaneous email evidence — Master Workbook v8 — February to
May 2024*

Case references

BV20D01752 | Zahmoul v Zahmoul

BL-2024-001217 | Detach Lending Limited v Zahmoul

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

To be read with: the Suppression of Disability (Preliminary Document) and the Unilateral Orders Full Misconduct in Public Office Report.

PART A — CORRECTION OF RECORD: MPS AND DETACH LENDING ARE UNCORRELATED

This annex corrects a potential mischaracterisation in earlier analysis. The MPS order and the Detach litigation funding loan are not financially correlated. MPS payments are not used to service the Detach loan and never were. They are entirely separate instruments serving entirely different purposes.

MPS — Maintenance Pending Suit	Detach Lending — Litigation Funding Loan
Purpose: Living expenses for NZ and her two daughters during proceedings. Specifically: housing/rent, groceries, basic necessities, utilities, healthcare. Secondary purpose (intended): In the post-trial period, NZ intended to use MPS income to fund legal fees for the draft order process and appeal. This was her only available source of funds for legal representation. Court order: MPS order made by MacDonald J on 5 July 2023. H in breach from February 2024. 72+ documented enforcement requests. Zero enforcement actions. NZ's own statement (Row 313, 16 May 2024): "I seek equal footing in these proceedings. I seek to have the same rights as the respondent. I seek immediate enforcement of the MPS order... I do not seek the judgment money."	Purpose: Litigation funding loan — taken to fund legal representation in BV20D01752. Used to pay solicitors (AFP Bloom) and counsel (Brent Molyneux KC) during the financial remedy proceedings. Key fact (Row 12, 9 February 2024): The £40,000 Detach loan extension was negotiated specifically to secure representation for the LSPO hearing. H deliberately defaulted on his LSPO costs order — the mechanism that was supposed to fund NZ's legal fees — forcing her to draw on the Detach loan instead. No correlation to MPS: MPS payments and Detach loan servicing are entirely separate. The loan was obtained before MPS enforcement became an issue. The connection between MPS non-enforcement and Detach default runs through a different causal mechanism — explained in Part C below.

PART B — JUDICIAL COERCION CONTEMPORANEOUS WITH DRAFT ORDER PROCESS

Row 271 of the Master Workbook (3 May 2024) records the most significant single judicial communication in the dataset. MacDonald J's response to NZ's equal footing submissions was transmitted via Karen Selby-King at 10:26am on 3 May 2024 — the same day Campbell filed the unilateral draft order and inserted para 34.

> *"Your communications are entirely inappropriate and must cease. If you have a £6.2 million financial remedy order that you disagree with, your remedy is to appeal."*

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> MacDonald J via Karen Selby-King — 3 May 2024, 10:26am — Row 271, Master Workbook v8 [PRIORITY STRATEGIC]

What NZ was actually asking	MacDonald J's response	Why this is MiPO
NZ's equal footing submissions — 2-3 May 2024: NZ was NOT challenging the judgment. She explicitly separated the two in multiple communications. She was asking: (1) Why is the court permitting Campbell to submit unilaterally when I have no equal footing? (2) Please enforce the MPS so I can obtain food, accommodation and legal representation. (3) Please give me reasons for refusing equal footing. (4) Please tell me the correct form to file a stay. [Row 277] "I am not trying to argue the judgment... I do not want to be a LiP. I seek legal representation on the same level as the respondent."	MacDonald J's two responses on 3 May: Response 1 (10:26am): <i>"Your communications are entirely inappropriate and must cease."</i> The £6.2M coercion quote is stated TWICE in the same message. Directs NZ to <i>"agree the order or appeal."</i> Response 2 (afternoon): Reframes NZ's equal footing argument as a request for the court to arrange legal representation — then refuses it on that false basis. States: <i>"the court has taken no decision that requires reasons to be given."</i> [Row 301 — Legal Significance] <i>"The characterisation of W's equal footing argument as a request for legal representation is a deliberate reframing that enables the judge to refuse on a ground that was never invoked."</i>	MiPO analysis: WILFUL NEGLECT — active reframing of NZ's argument: A judge who reframes a party's legal submission in order to refuse it on a ground she never invoked is not making an error. The two written responses prove MacDonald J read NZ's submissions carefully enough to reframe them. The reframing is the act that establishes wilful indifference. TIMING — same day as para 34 insertion: The coercion quote is transmitted at 10:26am on 3 May. Campbell files the unilateral draft at 13:08 and inserts para 34 at 15:55. The sequence is: (1) judge directs NZ to "agree or appeal"; (2) Campbell files; (3) para 34 extinguishes her enforcement application; (4) judge accepts it. All four acts on the same day. £6.2M characterisation: Characterising NZ's participation request as conduct related to "£6.2M" is a deliberate mischaracterisation. NZ was not seeking to reargue the judgment. She was seeking procedural fairness for the implementation process. The quote is designed to make NZ's request look like financial self-interest rather than a disability accommodation need.

PART C — DETACH LENDING: CORRECT CAUSAL NEXUS TO BV20D01752

The connection between the Detach default judgment (BL-2024-001217) and the family proceedings runs through three distinct causal mechanisms — none of which is a direct financial correlation between MPS and loan servicing.

Mechanism 1 — Participation Exclusion → No Legal Representation → Loan Unpayable

Causal Mechanism	Evidential Basis	MiPO / Legal Consequence
The Detach loan was taken to fund legal representation in BV20D01752. AFP Bloom withdrew from the record on 6 March 2024 — six days after the trial ended — because NZ could not pay £28,000 in outstanding fees. The firm had received the Detach loan funds but drew down the full available amount during the proceedings. [Row 76] AFP Bloom confirms attendance at judgment is "conditional on W finding funds." [Row 88] NZ states at 3:15am she cannot be represented at judgment without £28,000.	Part 3A measures ceased immediately post-trial without judicial act. MPS payments ceased from February 2024. No income = cannot fund solicitor return. [Row 83] 20 March 2024: <i>"I am completely in the dark on judgment representation, I am in breach of the Detach loan, faces hospitalisation the following week."</i> [Row 75] 15 March: NZ asks solicitor whether firm will return on record before judgment. Detach loan terms require solicitor presence. Gateley Legal — Detach's solicitors in BL-2024-001217 — were informed of NZ's LiP status in the same March 2024 communications.	The absence of Part 3A measures and the MPS breach are the direct cause of AFP Bloom's withdrawal. AFP Bloom's withdrawal is the direct cause of Detach loan default — the firm had drawn funds during proceedings but representation ceased before the loan purpose (the draft order process) was complete. MiPO link: MacDonald J's failure to operate Part 3A measures post-trial and failure to enforce MPS created the funding void that made the Detach loan unserviceable at the critical post-judgment implementation stage.

Mechanism 2 — Exclusion from Draft Order → No Protection of Financial Position

Causal Mechanism	Evidential Basis	MiPO / Legal Consequence
Because NZ was excluded from the draft order process, she could not include any provision addressing or protecting her position on the Detach loan within the final order. H's counsel controlled the draft order entirely. The final order contains no provision addressing the Detach loan or NZ's litigation funding obligations. [Row 94] NZ attempts to use Detach letter authorisation as leverage to force solicitor to answer binary question about order drafting scope — the only tool available to an unrepresented autistic litigant in crisis.	Detach loan is a litigation funding instrument secured against the outcome of BV20D01752. The terms of the loan anticipated that the final order would address the outstanding balance. [Row 12] Legal significance: <i>"£40k Detach loan extension was for LSPO representation negotiated by Peter Burgess; W won the LSPO hearing but H never paid"</i> — establishing H's role in creating the funding gap that necessitated the loan. Campbell's draft order contains no Detach provision. NZ — excluded from the process — could not propose one. The loan falls outside the order and becomes immediately actionable on the conclusion of	A party who is excluded from the draft order process cannot protect her own financial interests within that order. The exclusion is the cause of the omission. The omission is the cause of the loan becoming immediately actionable. MiPO link: The unilateral draft order process — permitted and accepted by MacDonald J — structurally prevented NZ from addressing her litigation funding position. This is a direct consequence of the participation failure documented in the Unilateral Orders Full Report.

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Mechanism 3 — Para 34 + MPS Non-Enforcement → No Income at Conclusion of Proceedings

Causal Mechanism	Evidential Basis	MiPO / Legal Consequence
Para 34 of the final order (inserted by Campbell on 3 May, sealed 24 May) extinguished all MPS arrears. MPS is NZ's income for living expenses. From 24 May 2024, proceedings concluded on H's unilateral terms. NZ has received zero under the final order. MPS arrears cancelled. Pension transfers not made. Education fund under H's sole control. NZ exits proceedings with: no income, no assets transferred, no legal representation, and a £1,008,848.42 Detach default judgment accruing at £281.38 per day.	[Sealed order, para 34] <i>"Any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders are hereby remitted."</i> This provision was inserted by Campbell without notice, without hearing, without any application to vary the MPS order, and with knowledge of NZ's live D50K enforcement application. [Row 313, Legal Significance] <i>"W explicitly distinguishes MPS enforcement (which she wants) from the judgment proceeds (which she does not want). This distinction is central to understanding her position."</i>	The conclusion of proceedings on H's unilateral terms — with no transferred assets, no enforceable pensions, and cancelled MPS arrears — leaves NZ without any financial resource to address the Detach liability. MiPO link: Para 34 is not a separate act from the Detach proceedings. It is the provision that closed the last financial mechanism available to NZ at the conclusion of BV20D01752, making default on the Detach loan mathematically inevitable. This is why the Detach default judgment of £1,008,848.42 is not a separate commercial matter. It is the financial crystallisation of the institutional failures in BV20D01752.

PART D — SELECTED EMAIL EVIDENCE: CONTEMPORANEOUS RECORD OF FINANCIAL POSITION AND INCAPACITY

The following records are drawn from the Master Workbook v8. They are selected to demonstrate the financial position and state of incapacity documented in real time by NZ, her former solicitors, and court officials during the draft order period. Each record is identified by its workbook row number.

Row	Date / Time	Direction	From	Précis + Legal Significance
12	9 Feb 2024	OUTBOUND	NZ	NZ forwards Detach December 2023 statement to AFP Bloom, disclosing that the £40,000 loan

				extension was negotiated by Peter Burgess specifically to secure representation for the LSPO hearing, and that H deliberately defaulted on his LSPO costs order — the mechanism that was supposed to fund NZ's legal fees — forcing her to draw on the Detach loan instead. Legal significance: CRITICAL: Establishes the true purpose of the Detach loan (legal representation, not living expenses) and H's role in creating the funding gap. MiPO — H's coercive financial control documented at the start of the post-trial period.
76	18 Mar 2024	INBOUND	AFP Bloom (Faye)	Faye confirms AFP Bloom are off the record and have no instructions to return for judgment receipt or order drafting — attendance is conditional on W "<i>finding funds</i>." This directly contradicts Zoe Bloom's 6 March undertaking that the firm would comply with its obligations. Legal significance: CRITICAL: Establishes that NZ entered the

				judgment and draft order period without legal representation due to funding collapse — itself caused by H's LSPO default and MPS breach. The representation gap is documented here.
83	20 Mar 2024	OUTBOUND	NZ	NZ states she is completely in the dark on judgment representation, is in breach of the Detach loan, faces hospitalisation the following week for gastric tests, and will write to the judge that evening about the Imerman devices. Legal significance: NZ discloses Detach loan breach to solicitor on 20 March 2024 — six weeks before judgment. She is already without legal representation, already in breach of the loan, and already unwell.
95	21 Mar 2024	INBOUND	Zoë Bloom	<i>"I cannot give you a binary answer"</i> — Zoë Bloom formally and explicitly states she cannot give NZ a binary answer as the matter is <i>"more nuanced."</i> This is the clearest documented refusal in the dataset to provide the specific communication format needed by

				an autistic client. Legal significance: MiPO (solicitor conduct) + CLAAS: This refusal to provide a binary YES/NO to an autistic client asking whether her brief fee covers order drafting — the most basic procedural question — is the direct cause of NZ's inability to plan her participation in the draft order process.
238	30 Apr 2024	OUTBOUND	NZ	NZ writes to Campbell KC invoking the Code of Conduct; states MPS breach means she cannot pay rent; demands enforcement including rent payments for March and April 2024. MPS purpose stated explicitly: housing, rent, food. Legal significance: MPS PURPOSE STATED ON RECORD: NZ documents to Campbell KC that the MPS is for rent and living expenses — not for the Detach loan. Campbell KC is on notice of the specific purpose of MPS at the time she is preparing to insert para 34.
249	2 May 2024 00:25	OUTBOUND	NZ	NZ files D50K enforcement

				application for MPS order made by MacDonald J on 5 July 2023. H in breach since March 2024. Filed to RCJ and Karen simultaneously. <i>"Please find attached an urgent notice of application for enforcement by such method of enforcement as the court may consider appropriate."</i> Legal significance: D50K APPLICATION — LIVE ON RECORD. Fee paid 9 May (£58, ref 7981127830). Never listed. Never determined. Extinguished by para 34 inserted by Campbell 3 May — one day after this filing.
256	3 May 2024 13:59	OUTBOUND	NZ	NZ escalates MPS enforcement directly to Karen. States she needs food and accommodation urgently. Has anaemia. Asks judge to set out reasons and options if he cannot enforce. <i>"I need to eat; I am hungry and I have anaemia."</i> Legal significance: WELFARE DISCLOSURE TO COURT ON RECORD — transmitted to MacDonald J by

				Karen at 16:48 on the same day Campbell inserts para 34. The judge has both simultaneously.
258	3 May 2024 15:54	OUTBOUND	NZ	NZ escalates to Lord Chancellor and MacDonald J simultaneously, citing FPR Part 1 overriding objective. <i>"Why is the court knowingly keeping me in a position which is unequal, unfair, and unjust relative to the respondent's position, in circumstances where the court has the power to enforce the mechanism by which I can have equity?"</i> Legal significance: LORD CHANCELLOR ON NOTICE AT 15:54. Campbell inserts para 34 at 15:55 — one minute later. This is the most significant timestamp in the dataset.
271	3 May 2024 10:26	INBOUND	MacDonald J (via Karen)	<i>"Your communications are entirely inappropriate and must cease. If you have a £6.2 million financial remedy order that you disagree with, your remedy is to appeal."</i> £6.2M quote stated twice. NZ directed to agree or appeal.

				No reasons for MPS non-enforcement. No reasons for refusing equal footing. No guidance on stay form. Legal significance: PRIORITY STRATEGIC — PRIMARY SOURCE of the MacDonald J coercion quote. Transmitted same morning as Campbell's 13:08 unilateral filing. Judge has already directed NZ to agree or appeal before Campbell files. The sequence establishes that the draft order process was conducted without NZ's participation from the judge's first communication that day.
313	16 May 2024	OUTBOUND	NZ	NZ replies to Kelly Foxwell: no legal representation; seeks equal footing, own draft order, MPS enforcement, appeal and JR; no food, no accommodation. States explicitly: "<i>I do not seek the judgment money. I seek enforcement of the MPS order.</i>" Legal significance: KEY DISTINCTION ON RECORD: NZ explicitly states she is not seeking to reargue the judgment. She

				wants MPS enforcement (living expenses). This directly contradicts MacDonald J's characterisation of her communications as attempts to resist a "£6.2M" order.
328	17 May 2024	OUTBOUND	NZ	NZ states she is on her third day of hunger. Judge refuses to enforce the MPS order. The respondent has been in breach since March. <i>"I intend to appeal the judgment in its entirety. However, I am losing my strength and am on my third day of hunger."</i> Copied to The Guardian and TBIJ. Legal significance: THIRD DAY OF HUNGER ON RECORD. Copied to media. MacDonald J is on notice via Foxwell (who confirms same day emails forwarded to judge). The condition of the party whose financial settlement is being sealed without her participation is documented here.
356	29 May 2024	OUTBOUND	NZ	NZ states her draft order is not ready. Without money for food and accommodation. Unwell since 24 March 2024. Order illegal and not

				agreed. Appealing. "This is the 72nd time I have requested enforcement of the MPS." £89 bank balance. 85-year-old father her sole financial support throughout March–May 2024. Legal significance: 72nd MPS ENFORCEMENT REQUEST — W's own count, 5 days after sealed order. £89 bank balance at conclusion of £6.2M proceedings. Sealed order contains para 34 extinguishing all arrears. The gap between the judgment figure and NZ's actual financial position at conclusion is total.
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SUMMARY FOR INVESTIGATING OFFICERS

The Detach lending default judgment (BL-2024-001217, £1,008,848.42) is connected to BV20D01752 through three distinct mechanisms, none of which is a direct financial correlation between MPS payments and loan servicing. (1) The Detach loan was taken to fund legal representation; the funding collapse that made the loan unserviceable was caused by H's LSPO cost default and MPS breach, which left NZ unable to retain solicitors for the post-judgment period. (2) NZ's exclusion from the draft order process meant she could not include any provision protecting her Detach position within the final order. (3) Para 34 of the final order — inserted by Campbell KC without notice at 15:55 on 3 May 2024 — cancelled all MPS arrears, the income source NZ intended to use for legal fees and living expenses at the critical implementation stage.

The MPS order is for living expenses — housing, groceries, basic necessities for NZ and her two daughters — and was additionally intended to fund legal representation in the post-trial period. NZ explicitly distinguishes MPS income from the judgment proceeds in her 16 May 2024 communication to the court (Row 313). MacDonald J's characterisation of her

participation requests as resistance to "a £6.2M order" is a deliberate reframing documented in the workbook as a priority strategic record.

NZ exited the final hearing of BV20D01752 with £89 in her bank account, no assets transferred, no pension transfers, a cancelled MPS enforcement application, and a Detach default judgment of £1,008,848.42. She had been on her third day of hunger five days before the order was sealed. She has received nothing under the final order as of 15 March 2026.

EVIDENCE AVAILABILITY

The complete open correspondence and raw email evidence for the period February to June 2024 — including all 379 records referenced in the Master Workbook v8 — is archived in full on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**. All records identified in this annex by row number are available for forensic inspection alongside their full email content and metadata.